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# Assembly Speaker Robert Rivas talks budget, crime and more

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Perhaps the newest news from Assembly Speaker Robert Rivas on Wednesday: He and his wife are in the process of adopting a seven-month-old baby.

But in an hour-long conversation hosted by the Public Policy Institute of California, the Salinas Democrat who took over as speaker last June did address a wide range of topics of interest to Capitol followers, including the budget deficit, crime, housing and the 2026 governor's race (spoiler alert: he didn't endorse anyone).

Some highlights:

Budget deficit: Whether you go by Gov. Gavin Newsom's figure of $38 billion or the Legislative Analyst's Office estimate of $68 billion, the state budget deficit for 2024-25 will still be a monumental challenge that the Legislature must contend with this session.

Rivas said he has "all the confidence in the world" in Democratic Assemblymember Jesse Gabriel of Encino, whom he picked as budget committee chairperson in a leadership shuffle for the 2024 session. And because Rivas leads 62 Democrats, he aims to approach the budget "as a caucus."

* Rivas: "It's going to underpin everything we get done this year. It's going to impact everything we do."

Crime: Rivas touched on crime and the select committee he formed on retail theft, which met for the first time in December and is expected to reconvene in Los Angeles and San Francisco. Though he said that lawmakers must "not compromise California's progressive values," he stopped short of fully endorsing a "public health approach" to public safety — a tension often played out between Democratic lawmakers who prioritize expanding social services as a way to address crime, and Republicans who advocate for harsher penalties. Rivas urged legislators to "be aware of unintended consequences" of past measures, but acknowledged that crime is a big concern for voters.

* Rivas: "Residents who live in the state, who work in the state, they need to feel safe in their communities. They need to feel safe as residents of California.... It's a concern we have to be very cognizant about."

Housing: Rivas pushed his fellow lawmakers "to make more progress," not only by passing policies that reduce red tape, address impact fees and remove blight but also by encouraging more housing and addressing issues that affect the state's overall high cost of living.

* Rivas: "Housing is not a luxury item in this state. Housing should be a human right. Every person deserves a quality and dignified place to live."

2026 governor's race: Saying that he has a lot of friends who are running in the next gubernatorial race, as well as a few others who will make their decision in "months to come," Rivas declined the chance to announce an early endorsement. Quick recap: the already crowded lineup includes Lt. Gov. Eleni Kounalakis, Superintendent of Public Instruction Tony Thurmond, outgoing Senate leader Toni Atkins and former Controller Betty Yee.

* Rivas, looking at his watch: "It's only 2024 though, we still have some time...."

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CalMatters covers the Capitol: CalMatters has guides and stories to keep track of your lawmakers, find out how well

legislators are representing you, hear the lessons learned by first-termers, explore the Legislature's record diversity, make your voice heard, and understand how state government works. And in 2024, we launch the groundbreaking Digital Democracy project.

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Other Stories You Should Know

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Would a speed limiter prevent traffic deaths?

If Sen. Scott Wiener's latest bill passes into law, almost nobody in California will be able to put the "pedal to the metal."

The Democrat from San Francisco announced Wednesday two measures aimed to reduce traffic deaths. The one that will likely be the most contentious is Senate Bill 961, which would mandate cars built or sold on or after 2027 in California to be outfitted with an "intelligent speed limiter system" that enables drivers to go only 10 mph over the speed limit. Emergency vehicles will be exempt from the rule, and the California Highway Patrol will be able to disable the technology on its vehicles in specific circumstances.

* Wiener, in a statement: "The alarming surge in road deaths is unbearable and demands an urgent response. There is no reason for anyone to be going over 100 miles per hour on a public road."

SB 961 also would require underrides and side guards on large trucks to prevent cars from sliding under truck trailers after a collision.

Built-in technology that limits a car's speed is nothing new. Starting in July, all new cars sold in the European Union are required to come with "intelligent speed assistance," reports The San Francisco Standard, and New York City ran a pilot program in 2022 with city-owned vehicles. Some car makers also already offer speed control features that drivers can use when activating cruise control, according to the San Francisco Chronicle.

In his announcement, Wiener cited state reports showing that one-third of all fatal crashes in California from 2017 to 2021 were speed-related and that speeding-related crashes jumped by 33% between 2019 and 2022.

Still, the first-in-the-nation measure is likely to receive pushback from those who perceive it as another example of government overreach. Wiener's other proposal, SB 960, would mandate Caltrans to improve road and safety conditions for pedestrians, cyclists, those living with disabilities and others.

Psychedelics update: Speaking of the senator, his bill to decriminalize psychedelic drugs was vetoed by Gov. Newsom last year. And now a similar initiative has officially failed to qualify for the November ballot.

But the idea isn't completely dead in California. There are plans afoot to move ahead this session on narrower bills, including one to legalize psychedelic-aided therapy.

A key deadline on housing crisis

From CalMatters housing reporter Ben Christopher:

Jan. 31 is coming.

State housing regulators have given dozens of cities and counties across the San Francisco Bay Area until next week to redraw their zoning maps, converting thousands of suburban-style tracts into apartment-ready parcels.

This is the latest inflection point in a years-long tussle between the Newsom administration and local governments over how to make room for more than 2.5 million new homes by the end of the decade.

Last year, local governments across the region were required to submit development plans spelling out where the new housing will go. With this rezoning deadline, the state is demanding proof that cities and counties are doing what they said they would do.

* Will Sterling, a land use attorney: "This is kind of the test case.... There's quite a bit of discretion built into whether (the state) wants to go nuclear on a jurisdiction."

Among the possible consequences for municipalities that don't play along:

* Cuts in state funding

* Getting sued by the Attorney General

* Having a court suspend a city's ability to issue new permits

There's also the dreaded "builder's remedy," which lets developers ignore zoning limitations in jurisdictions that are out of compliance, so long as 20% of the units are affordable.

The builder's remedy has spawned a few high-profile proposals, but it hasn't delivered the deluge of apartments that some hoped and others feared it would. That's in part because many local governments have pushed back, deeming their own housing plans compliant with the law — thus shielding themselves — rather than await the state's seal of approval.

A new bill proposed by Chula Vista Democratic Assemblymember David Alvarez would put an end to that, specifying that only the state housing department or a court have the power to check off on a local housing plan.

Read more about this issue in this story.

How much CA is depleting groundwater

When groundwater levels plummet, it can wreak havoc on the land and surrounding communities: drinking water wells dry up, streams disappear and the parched earth can sink and collapse, threatening the roads and buildings above it.

And while Spain, Iran and China are home to the world's top rapidly declining aquifers, according to a study published in Nature Wednesday and led by the University of California and Swiss researchers, California and several of its aquifers are included in the top 100 as well.

As CalMatters water reporter Rachel Becker explains, these shrinking underground basins — where water levels fall as much as almost four feet a year in some areas — include California's Cuyama Valley, four other basins in the San Joaquin Valley and one in northeastern San Diego. (Only two other U.S. basins cracked the top 100: Gila Bend near Phoenix and Mill Creek in Idaho.)

* Scott Jasechko, co-author of the study and UC Santa Barbara associate professor of hydrology, water resources and groundwater: "Some of the rates of groundwater level decline occurring in California really are some of the highest in the world. It's a sobering finding. We've got a lot of work to do here in California."

With water resources continuing to shrink in the state, the decades-long battles over regulations keep going. Disputes between environmentalists, Native tribes, growers and ranchers in Scott and Shasta Rivers, the Bay-Delta and beyond all underscore the local clashes spurred by depleting water. Not to mention the financial toll it can cost when water dwindles — in parts of the San Joaquin Valley, for example, subsided land caused so much damage to

the California Aqueduct that $187 million had to be poured in to repair the Friant-Kern Canal.

For more on the study and California's disappearing groundwater, read Rachel's story.

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CalMatters Commentary

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